

PENALTIES FOR ALCOHOL/DRUG RELATED VIOLATIONS

AGGRAVATED DRIVING WHILE INTOXICATED AGG-DWI (0.18 and higher Blood Alcohol Content [BAC])

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$1000 Maximum \$2500	Up to 1 year	Minimum 1-Year Revocation
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years	Minimum 18-Month Revocation

DRIVING WHILE INTOXICATED OR DRIVING WHILE ABILITY IMPAIRED BY A DRUG DWI (0.08 and higher Blood Alcohol Content [BAC]) or DWAI-Drug

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$500 Maximum \$1000	Up to 1 year	Minimum 6-Month Revocation DWI; Minimum 6-Month Suspension (DWAI-D)
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years (DWI & DWAI-D); minimum 5 days jail or 30 days of community service (for DWI within prior 5 years)	Minimum 1-Year Revocation

DRIVING WHILE IMPAIRED BY COMBINED ALCOHOL & DRUGS DWAI-Combination

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$500 Maximum \$1000	Up to 1 year	Minimum 6-Month Revocation
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years	Minimum 1-Year Revocation

DRIVING WHILE ABILITY IMPAIRED DWAI (more than 0.05 up to 0.07 Blood Alcohol Content [BAC])

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Traffic Infraction)	Minimum \$300 Maximum \$500	Up to 15 Days	90 Day Suspension
2 nd Offense (Traffic Infraction) Within 5 Years	Minimum \$500 Maximum \$750	Up to 30 Days	Minimum 6-Month Revocation
3 rd Offense (Misdemeanor) Within 10 Years	Minimum \$750 Maximum \$1500	Up to 180 Days	Minimum 6-Month Revocation

NOTE: Higher fines, longer jail sentences, and increased license penalties (including lifetime revocation) may result from a third or subsequent conviction within 10 years. * Conviction fine only, does not include mandatory surcharge or crime victims' assistance fee.

**The Department of Motor Vehicle determines when your license can be returned. Its return or reinstatement, based on state law or regulation, is not automatic. You must reapply for your license and may have to pass a test.

NOTE: License actions for those under age 21 are different.